
The Supreme Court Just Opened the Door to a 2028 Nightmare

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The other shoe of the ongoing mid-decade redistricting battle dropped on Wednesday. In a 6–3 decision, the Supreme Court gutted yet another key element of the Voting Rights Act, this one protecting racial minorities’ equal ability to elect candidates of their choice. The decision gives red states, particularly in the South, carte blanche to gerrymander away previously protected congressional and state-level districts with significant, or majority, minority populations.

The political effect of the decision in *Callais* will be to set off a new wave of extreme partisan gerrymandering that is nearly unrestricted under federal law, while decimating the ranks of the Congressional Black Caucus. It may be too late in the 2026 cycle for this next round of cutthroat redistricting to play out *in full* before the midterms. But the redistricting scramble ahead of the 2028 election will make the battle we’ve seen thus far look like a skirmish.

“Democrats across the country, in any place where they have the opportunity to do so, need to be prepared to take action to combat what’s about to happen across the South,” John Bisognano, president of the National Democratic Redistricting Committee, told me. “Republicans have consistently threatened and been very clear about their perspective of what this country should look like. And all states need to be ready for a call to action,” he said. “That’s what yesterday’s decision should mean to everybody.”

Estimates vary, but the GOP has the opportunity to target somewhere around a [dozen](#) predominantly Black or Hispanic districts in Southern states controlled by Republicans. (We’re not [counting Florida](#), which already completed its latest gerrymander this week under the assumption the Supreme Court would rule as it did. Excellent timing.)

So far, it’s only clear that one of these states—Louisiana, which has two seats held by Black Democrats—will attempt to change its maps for the 2026 election. That’s because Louisiana’s existing map was specifically found to be “an unconstitutional racial gerrymander” in *Louisiana v. Callais*. Though absentee voting has been underway ahead of Louisiana’s May 16 primaries, with early voting set to begin on Saturday, the governor and attorney general announced Thursday that they would [suspend](#) congressional primaries while they put together a new map.

Keep in mind: Regardless of what the Supreme Court said when it did, it is a dramatic thing to postpone an election that is already underway. “I anticipate it will be litigated,” Bisognano said. “I don’t think it will go off without a hitch in whatever their perceived path forward is.”

In most Republican-led states with fresh redrawing opportunities, though, primaries have already been held or filing deadlines passed. State leaders may be reluctant, in part because of legal challenges, to reset all of that.

Gov. Kay Ivey of Alabama, which has two seats held by Black Democrats, [said Wednesday](#) that the state would not hold a special session to redraw maps “at this time.” Tennessee gubernatorial candidate Sen. Marsha Blackburn encouraged the state to organize a special session to eliminate the state’s lone, Memphis-based Democratic district. [State leaders](#) were skeptical at first, although

President Donald Trump [leaned](#) into the state on Thursday. Any additional changes for 2026 would require a heated pressure campaign from Trump.

And then the dirty work for 2028 would begin.

The fact that Republicans have the opportunity to eliminate another dozen or so Democratic seats doesn't mean that they will. *Callais* may have gutted protected districts for minority voters in the South, but it did not eliminate minority voters in the South. Eliminating previously protected seats in a state like Georgia, for example, could spread Republican margins too thin.

But you'd sure bet Republicans will give it the old college try. How—and where—would Democrats respond?

Just like Virginia and California did this cycle, blue states like Washington, Colorado, Oregon, and New York would work to unwind the independent redistricting commissions they set up in recent decades—in what feels like entirely different political eras. States that passed in the 2026 round of gerrymandering, like Maryland and Illinois, might give it a second look. (As would Republicans states that passed, like Indiana.)

What would make some of these responses for Democrats tricky, though, are their own internal politics. Democrats weren't really constrained from gerrymandering by the VRA to begin with. "You're naturally going to produce Democratic districts where the minority candidate of choice can win, anyway, in Chicago or New York City or whatever," Sean Trende, a senior elections analyst from RealClearPolitics, told me.

"What constrains Democrats a little bit differently," he said, "are the intra-coalitional battles."

Specifically, a state like Illinois, New York, or Maryland, in order to crank up its gerrymandering to the max, would necessarily have to break up safe and cohesive Black districts, something that many Black Democratic lawmakers have traditionally been loath to agree to in the past.

At a press conference on Wednesday, though, members of the Congressional Black Caucus sounded game to do whatever was necessary.

"I'm not speaking for my chairwoman [Yvette Clarke]," Alabama Rep. Terri Sewell told reporters, "but I'd take 52 seats from California. I sure would. And 17 seats from Illinois. Because at the end of the day, they're rigging this election to try to win." In other words, given the emergency nature of the situation, break up what you need to break up in order to successfully counterpunch.

At the end of the day, *Callais*, combined with the new map Florida passed this year, should net Republicans a small net pickup in seats from the 2026 redistricting back-and-forth. By no means, though, would it be enough on its own terms to insulate their majority from a strongly pro-Democratic midterm cycle.

It's only after this cycle that the race to the bottom truly gets underway.

And how far will it go? The primary purpose of this article is to tally the tit-for-tat of where the chips may land in terms of control of the House of Representatives over the next couple of cycles. Done. What should not be lost, though, is how atrocious this race to the bottom will be for representative democracy. Black Democrats in the South are on the cusp of losing representatives in Congress

with any connection to them, or any political interest in their concerns. The same goes for vast swaths of Republican voters in blue states. And there's no guarantee that this process of fighting fire with fire, and the elimination of all taboos against gerrymandering, will net out in the end.

"This is increasingly kind of the nightmare scenario: What happens if one party gets hit with a wave in 2030," Trende says, "where you just get Republicans controlling almost all of the states, or Democratic trifectas in all of the states? Then you can really draw maps that make it impossible for the House to flip. Our institutions are fragile enough as it is. You can get real problems."

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